

| Risk        | Fee rule              | Plaintiff<br>shortfall | Nonliable<br>defendant | Liable<br>defendant | Gross outcome<br>error | Real litigation<br>costs |
|-------------|-----------------------|------------------------|------------------------|---------------------|------------------------|--------------------------|
| Risk Averse | American              | 0.1984–0.2832          | 0.1544–0.2832          | 0.0052–0.0228       | 0.2763–0.3728          | 0.1812–0.3356            |
| Risk Averse | Trial Fee-Shifting    | 0.1970–0.2671          | 0.1607–0.2568          | 0.0098–0.0211       | 0.2816–0.3184          | 0.1822–0.2652            |
| Risk Averse | Complete Fee-Shifting | 0.2103–0.2979          | 0.1479–0.2953          | 0.0045–0.0385       | 0.2976–0.3801          | 0.2210–0.3093            |